UJJIVAN SMALL FINANCE BANK
Build a Better Life

Sample Loan Agreement - LOAN AGREEMENT

This Loan Agreement (hereinafter referred to as "**Agreement**") is executed at the place and on the date mentioned in the Schedule by and between:

The borrower whose details are stated in Schedule [hereinafter referred to as the **"Borrower"** which term shall, unless repugnant to the context, be deemed to include the Co-Borrower(s), if any, as detailed in the Schedule hereto and include in case of: (a) a proprietorship firm, the proprietor(ess) (both in his/her personal capacity and as proprietor(ess) of the concern) and his/her heirs, legal representatives, executors, administrators, permitted assigns and successors), (b) a company or limited liability partnership, its successors and permitted assigns, (c) a partnership firm, each of the partners and survivor(s) of them and the partners from time to time (both in their personal capacity and as partners of the firm) and their respective heirs, legal representatives, executors, administrators, permitted assigns and successors of the firm, (d) in case trust, each of the present and future trustees and their respective heirs, legal representatives, executors, administrators, permitted assigns and successors of the trust, and (e) in case a society, each of the present and future members of the governing council and their respective heirs, legal representatives, executors, administrators, permitted assigns and successors of the society] of the **ONE PART**,

And

UJJIVAN SMALL FINANCE BANK LTD., a company incorporated under the provisions of the Companies Act, 2013 and banking company within the meaning of the Banking Regulation Act, 1949 (CIN: L65110DL2016PLC302481) having its registered office at Plot No. 2364/8, Khampur Raya Village, Shadi Kampur, Main Patel Road, New Delhi – 110 008, with its head office at Grape Garden, No. 27, 3rd A Cross, 18th Main, Koramangala 6th Block, Bengaluru - 560 095 and operating through one of its branches, specified in Schedule (hereinafter referred to as the "**Bank**", which expression shall include their respective heirs, representatives, successors, executors, administrators and assigns of the **OTHER PART**.

The Borrower and the Bank are hereinafter collectively referred to as **"Parties"** and individually as a **"Party".**

WHEREAS

A) At the request of the Borrower as per the Application Form for the purpose detailed in Schedule (the "**Purpose**"), and on the basis of the statements and representations made by the Borrower and various documents submitted by the Borrower, the Bank has agreed to grant to the Borrower a loan for a maximum amount as detailed in Schedule (the "**Loan**") upon the terms set forth in these presents and other Transaction Documents.

B) In consideration of the Loan to be lent to the Borrower by the Bank, the Borrower hereby agrees to abide by the following terms and conditions as contained herein.

NOW, THEREFORE, THE PARTIES AGREE AS FOLLOWS:

ARTICLE: 1 DEFINITIONS

1.1. The following definitions apply throughout this Agreement unless otherwise stated:

"**Additional Interest**" means and includes the interest that is levied by the Bank at the rate specified in Schedule: (a) on account of delay in payment of the EMI or PEMII or any other amounts due and payable by the Borrower to the Bank from the Due Date until payment is made to the Bank; or (b) the occurrence of any other Event of Default set out in Article 6 of this Agreement, from the date of occurrence of the Event of Default until the remedy of the same, and such Additional Interest shall be in addition to the applicable Interest

"**Applicable Law**" means any statute, law, regulation, ordinance, rule, judgement, order, decree, ruling, bye-law, approval of any Competent Authority, directive, guideline, policy, requirement or other governmental restriction or any similar form of decision of or determination by, or any interpretation or administration having the force of law of any of the foregoing by any Competent Authority having jurisdiction over the matter in question, whether in effect as of the date of Agreement or at any time thereafter.

"**Application Form**" means, as the context may permit or require, the application letter submitted by the Borrower for availing of the Loan, together with all other information, particulars, clarifications, letters and undertakings and